



CHAPTER clxxi.

An Act for extending the time for the purchase of certain lands and completion of certain railways by the Taff Vale Railway Company for enabling the Company to work their railways by electrical power and for other purposes. A.D. 1903.
[11th August 1903.]

WHEREAS it is expedient that the powers of the Taff Vale Railway Company (in this Act called “the Company”) for the compulsory purchase of certain lands and for the construction and completion of certain railways which by the several Acts hereinafter referred to in that behalf the Company were authorised to acquire and construct should be extended as provided by this Act :

And whereas it is expedient that the Company should be authorised to work their railways by electrical power and that further provision should be made with reference to the net register tonnage of vessels using their docks :

And whereas it is expedient that the Company should be empowered to raise additional capital and to apply their funds to the purposes of this Act :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited for all purposes as the Taff Vale Short title, Railway Act 1903.

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Incorporation of
general Acts.

2. The following parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say):—

Part II. (relating to extension of time) of the Railways Clauses Act 1863:

The clauses and provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The consolidation of the shares into stock;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends;

The borrowing of money on mortgage or bond;

The conversion of the borrowed money into capital;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested:

And Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III.

(relating to debenture stock) of the Companies Clauses

Act 1863 as amended by subsequent Acts.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Further extension of time for purchase of lands under Act of 1890.

4. The powers conferred upon the Company by the Taff Vale Railway Act 1890 as extended by the Taff Vale Railway Act 1901 (in this Act referred to as “the Act of 1901”) for the compulsory purchase of lands for the purposes of the Railway No 1 authorised by the said Act of 1890 are hereby further extended and may be exercised by the Company during but not after a period of two years from the passing of this Act.

Further extension of time for con-

5. The time limited by the said Act of 1890 as extended by the Act of 1901 for the construction and completion of the said

Railway No. 1 is hereby further extended for a period of three years from the twenty-fifth day of July one thousand nine hundred and four and sections 18 and 19 of the said Act of 1890 shall be read and construed accordingly.

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struction of
Railway No.
1 authorised
by Act of
1890.

If the said railway be not completed within the said period of three years then on the expiration of that period the powers by the said Acts granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall be then completed.

6. The following provisions for the protection and benefit of the Pontypridd Urban District Council (in this section called "the council") shall unless otherwise agreed in writing between the council and the Company have effect (that is to say):—

For protec-
tion of
Pontypridd
Urban Dis-
trict Council.

(1) The bridges carrying Railway No. 1 authorised by the Taff Vale Railway Act 1890 (the time for the construction of which railway is extended by this Act) over Merthyr Road and Coedpenmaen Road respectively shall be constructed with a clear span of not less than forty feet in the case of Merthyr Road and thirty-five feet in the case of Coedpenmaen Road and with a clear headway throughout in each case of not less than sixteen feet from the surface of the roadway:

(2) In carrying out the diversion of Merthyr Road the Company shall properly sewer and drain to the reasonable satisfaction of the council so much of the said road as is diverted.

7. The powers conferred upon the Company by the Taff Vale Railway Act 1892 as extended by the Act of 1901 for the compulsory purchase of such of the lands authorised by the said Act of 1892 to be acquired as are described or referred to in the First Part of the Schedule to the Act of 1901 are hereby (except as in the said Schedule mentioned) further extended and may be exercised by the Company for a period of two years from the twentieth day of June one thousand nine hundred and three.

Further ex-
tension of
time for pur-
chase of
lands under
Act of 1892.

8. The powers conferred upon the Company by the Taff Vale Railway Act 1894 as extended by the Act of 1901 for the compulsory purchase of such of the lands authorised by the Act of 1894 to be acquired as are described or referred to in the Second Part of the Schedule to the Act of 1901 are hereby (except as in the said Schedule mentioned) further extended and may be exercised by the Company during but not after a period of two years from the seventeenth day of August one thousand nine hundred and three.

Further ex-
tension of
time for pur-
chase of
lands under
Act of 1894.

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Further extension of time for purchase of lands under Act of 1896.

9. The powers conferred upon the Company by the Taff Vale Railway Act 1896 as extended by the Act of 1901 for the compulsory purchase of the lands required for the purposes of Railway No. 3 authorised by the said Act of 1896 other than the property numbered on the deposited plans referred to in the said Act of 1896 35 in the parish of Pontypridd and of such of the lands authorised by the said Act of 1896 to be acquired as are described or referred to in the first paragraph of the Third Part of the Schedule to the Act of 1901 are hereby further extended and may be exercised by the Company as regards the lands required for the said Railway No. 3 up to but not after the first day of January one thousand nine hundred and four and as regards the other lands referred to in this section during but not after a period of two years from the seventh day of August one thousand nine hundred and three.

Extension of time for purchase of lands under Act of 1900.

10. The powers conferred upon the Company by the Taff Vale Railway Act 1900 for the compulsory purchase of lands for the purposes of Railways Nos. 1 and 2 by the said Act of 1900 authorised are hereby extended and may be exercised by the Company during but not after a period of two years from the passing of this Act.

Extension of time for construction of Railways Nos. 1 and 2 authorised by Act of 1900.

11. The time limited by the said Act of 1900 for the construction and completion of the said Railways Nos. 1 and 2 respectively is hereby extended for a period of three years from the tenth day of July one thousand nine hundred and five and sections 8 and 9 of the said Act of 1900 shall be read and construed accordingly.

If the said railways be not completed within the said period of three years then on the expiration of that period the powers by the said Act of 1900 granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall be then completed.

Restrictions on displacing persons of labouring class.

12.—(1) The Company shall not under the powers of any former Act extended by this Act purchase or acquire in any borough or other urban district and elsewhere than in any borough or urban district any parish ten or more houses which on the fifteenth day of December next before the passing of the former Act by which the purchase or acquisition was originally authorised were or have been since that day or shall hereafter be occupied either wholly or partly by persons belonging to the labouring class as tenants or lodgers unless and until the Company—

(A) Shall have obtained the approval of the Local Government Board to a scheme for providing new dwellings for such

number of persons as were residing in such houses on the said fifteenth day of December or for such number of persons as the Local Government Board shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case; and

(B) Shall have given security to the satisfaction of the Local Government Board for the carrying out of the scheme.

(2) The approval of the Local Government Board to any scheme under this section may be given either absolutely or conditionally and after the Local Government Board have approved of any such scheme they may from time to time approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced :

Provided that the Local Government Board may dispense with the last-mentioned requirement subject to such conditions (if any) as they may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the Local Government Board may have approved of any scheme or of any modifications of any scheme or subject to which they may have dispensed with the above-mentioned requirement shall be enforceable by a writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(5) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

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(6) For the purpose of carrying out any scheme under this section the Company may appropriate any lands for the time being belonging to them or which they have power to acquire and may purchase such further lands as they may require and for the purpose of any such purchase sections 176 and 297 of the Public Health Act 1875 shall be incorporated with this Act and shall apply to the purchase of lands by the Company for the purposes of any scheme under this section in the same manner in all respects as if the Company were a local authority within the meaning of the Public Health Act 1875 and the scheme were one of the purposes of that Act.

(7) The Company may on any lands belonging to them or purchased or acquired under this section or any Provisional Order issued in pursuance of this section erect such dwellings for persons of the labouring class as may be necessary for the purpose of any scheme under this section and may sell demise or let or otherwise dispose of such dwellings and any lands purchased or acquire as aforesaid and may apply for the purposes of this section to which capital is properly applicable or any of such purposes any moneys which they may be authorised to raise or apply for the general purposes of their undertaking:

Provided that all lands on which any buildings have been erected or provided by the Company in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of such dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this enactment:

Provided also that the Local Government Board may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as they may see fit.

(8) Notwithstanding anything to the contrary in section 157 of the Public Health Act 1875 the provisions of that section and of sections 155 and 156 of the same Act shall apply to buildings erected or provided by the Company for the purpose of any scheme under this section.

(9) The Local Government Board may direct any inquiries to be held which they may deem necessary in relation to any scheme under this section and for giving effect to any of the provisions of this section and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(10) The Company shall pay to the Local Government Board A.D. 1903.
a sum to be fixed by that Board in respect of the preparation and
issue of any Provisional Order in pursuance of this section and any
expenses incurred by that Board in relation to any inquiries under
this section including the expenses of any witnesses summoned by
the inspector and a sum to be fixed by that Board not exceeding
three guineas a day for the services of such inspector.

(11) Any houses purchased or acquired by the Company for or
in connection with any of the purposes of this Act whether purchased
or acquired in exercise of the powers conferred by this Act or
otherwise and whether before or after the passing of this Act which
may have been occupied by persons of the labouring class within
five years before the passing of this Act and for which houses no
substitutes have been or are directed to be provided by any scheme
approved by the Local Government Board under the powers of any
previous Act relating to the Company shall for the purposes of this
section be deemed to have been acquired under the powers of this
Act and to have been occupied on the fifteenth day of December
last by the same number of persons belonging to the labouring class
as were occupying the said houses at the date of their acquisition
Provided that if the Local Government Board are unable to ascer-
tain the number of such persons who were then occupying the said
houses the said houses shall be deemed to have been occupied
by such number of such persons as in the opinion of the Local
Government Board they might have been sufficient to accommodate :

(12) For the purposes of this section—

The expression “labouring class” means mechanics artisans
labourers and others working for wages hawkers coster-
mongers persons not working for wages but working
at some trade or handicraft without employing others
except members of their own family and persons other
than domestic servants whose income does not exceed an
average of thirty shillings a week and the families of any
such persons who may be residing with them; and

The expression “house” means any house or part of a house
occupied as a separate dwelling.

13. The Company may at any time work by electrical power Railways
may be
worked by
electrical
power.
the traffic on their railways or any part thereof or any railways in
connection therewith now worked or used by them or any railways
hereafter to be constructed worked or used by them and for that
purpose may lay down maintain and use along upon in or under
any such railways and upon in or under any lands of the Company
electric cables mains wires and apparatus necessary or convenient

A.D. 1903. — for transmitting electrical energy or for such working and the Company may make such alterations of the said railways and stations and works as may be necessary to adapt the same for working by electrical power. Provided that the Company shall not under the provisions of this section work the traffic on the railways of any other company without the consent of the owners of such railways by electrical power unless such power is entirely contained in and carried along with the carriages.

Lands for
generating
station.

14. Subject to the provisions of this Act the Company may appropriate and use as stations for generating electrical energy and for providing and working thereon engines dynamos and other electrical plant and works any lands for the time being belonging to them. Provided always that the Company shall not be exonerated from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on the lands on which any such generating station may be constructed.

Provisions
as to use of
electrical
power.

15. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages :—

- (1) The Company shall employ either insulated returns or uninsulated metallic returns of low resistance :
- (2) The Company shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provisions shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Company shall be deemed to take all reasonable and proper precautions against interference with the working of

any wire line or apparatus if and so long as they adopt and employ at the option of the Company either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :

- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wires lines or apparatus or the currents therein unless in the construction erection maintaining and working of such wires lines and apparatus all reasonable and proper precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Company and any other party with respect to anything in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :
- (7) The Company using electrical power contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be subject to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence continues after conviction thereof Provided always that whether any such penalty has been recovered or not the Board of Trade if in their opinion the Company in the use of electrical power under the authority of this Act have made default in complying with the provisions of this Act or the Board of Trade regulations may by order direct the Company to cease to use electrical power and thereupon the Company shall cease to use electrical power and shall not again use the same unless with the authority of the Board of Trade and in

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every such case the Board of Trade shall make a special report to Parliament notifying the making of such order :

- (8) The expression "Company" in this section includes licencees and any person owning working or running carriages over any railway of the Company.

For protec-
tion of Post-
master-
General.

16. In the event of the traffic on the Company's railways or any part thereof or any railways in connection therewith now worked or used by them or any railways hereafter to be constructed worked or used by them being worked by electrical power unless such power is entirely contained in and carried along with the carriages in such a manner that no magnetic or other influence is created which is likely to cause injurious affection to a telegraphic line the following provisions shall have effect :—

- (1) The Company shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Company as to compliance with this subsection shall be determined by arbitration :
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Company of their electric lines and works or by the working of the undertaking of the Company the Company shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any work for working the railways aforesaid or the traffic thereon by electrical power is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Company or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Company and their

agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work. Any difference which arises between the Postmaster-General and the Company as to any requirement so made shall be determined by arbitration :

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Company is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Company's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Company enter any of the Company's works for the purpose of inspecting the Company's plant and the working of the same and the Company shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Company pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Company or their agents the Company shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Company or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected

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by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :

(8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :

(9) The expression “electric line” has the same meaning in this section as in the Electric Lighting Act 1882 :

(10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Company or their agents were a company within the meaning of that Act :

(11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Company by indictment action or otherwise in relation to any of the matters aforesaid :

(12) In this section the expression “the Company” includes their lessees and any person owning working or running carriages on any of the railways aforesaid.

Provision as
to net regis-
ter tonnage.

17.—(1) In the case of all steam vessels other than steam tugs using or touching at any of the harbours docks basins or piers of the Company or of the Company as lessees of the undertaking of the Penarth Harbour Dock and Railway Company the net register tonnage upon which rates are leviable shall in no case be deemed for the purpose of rating to be less than forty per centum of the gross register tonnage of such steam vessels.

(2) In the case of steam tugs the net register tonnage upon which rates are leviable shall in no case be deemed for the purposes of rating to be less than eighteen per centum of the gross register tonnage of such tugs.

Power to
raise addi-
tional capi-
tal.

18. The Company may subject to the provisions of Part II. of the Companies Clauses Act 1863 from time to time raise for the purposes of this Act and for the general purposes of their undertaking being in every case purposes to which capital is properly applicable any additional capital not exceeding in the whole the sum of forty-five thousand pounds by the issue at their option of new

ordinary shares or stock or new preference shares or stock or wholly or partly by any one or more of those modes respectively. A.D. 1903.

19. The Company shall not issue any share created under the authority of this Act of a less nominal amount than ten pounds nor shall any such share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share is paid in respect thereof. Shares not to be issued until one fifth paid.

20. One fifth of the amount of a share shall be the greatest amount of a call and two months at least shall be the interval between successive calls and four fifths of the amount of a share shall be the utmost aggregate amount of the calls made in any year upon any share. Calls.

21. The Company may in respect of the additional capital of forty-five thousand pounds which they are by this Act authorised to raise from time to time borrow on mortgage of their undertaking any sum not exceeding in the whole fifteen thousand pounds but no part of the said sum of fifteen thousand pounds shall be borrowed until shares for so much of the additional capital by this Act authorised as is to be raised by means of shares are issued and accepted and one half thereof is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares for the whole of such capital have been issued and accepted and that one half thereof has been paid up and that not less than one fifth part of the amount of each separate share in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and until stock for one half of so much of such capital as is to be raised by means of stock is fully paid up and the Company have proved to such justice as aforesaid before he so certifies that such shares or stock as the case may be were issued accepted and paid up bonâ fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and also if such capital is raised by shares that such persons their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof. Power to borrow.

22. Every provision in any Act passed before the present session of Parliament whereby the Company is authorised to raise by borrowing money for the purposes of their undertaking with For appointment of a receiver.

A.D. 1903. — respect to the appointment of a receiver for enforcing payment by the Company of arrears of interest or principal money or principal money and interest shall be and the same is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings which may have been commenced prior to the passing of this Act under any such provision. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Existing mortgages to have priority.

23. All mortgages granted by the Company in pursuance of the powers of [any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act. But nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Debenture stock.

24. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 32 of the Taff Vale Railway Act 1890. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Application of moneys by Company.

25. All moneys raised by the Company under this Act whether by shares or stock or debenture stock or borrowing shall be applied only to the purposes of this Act and to the general purposes of the undertaking of the Company being in every case purposes to which capital is properly applicable.

Power to Company to apply corporate funds to purposes of Act.

26. The Company may apply to the purposes of this Act or to the general purposes of their undertaking to which capital is properly applicable any of the moneys which they now have in their hands or which they have power to raise by shares or stock or debenture stock or borrowing by virtue of any Acts relating to them and which may not be required for the purposes to which they are by any such Acts made specially applicable.

Interest not to be paid on calls paid up

27. No interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls

made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845. A.D. 1903.

28. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking. Deposits for future Bills not to be paid out of capital.

29. Nothing in this Act contained shall exempt the Company or their railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company. Provision as to general Railway Acts.

30. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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